

Justification Review Document
For Sole Source - FAR Part 13.501*

(*Format follows FAR 6.303-2, but modified to reflect FAR subpart 13.5 procedures)

Program/Equipment: Install Safety Markers on Power Lines

Authority: Federal Acquisition Regulation 6.302-1(b)(3) When acquiring utility services, circumstances may dictate that only one supplier can furnish the service; or when the contemplated contract is for construction of a part of a utility system and the utility company itself is the only source available to work on the system.

Amount: Estimated price of this acquisition is [REDACTED]

Prepared by: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Contracting Officer:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Technical Representative:

[REDACTED]

[REDACTED]

Requirements Representative:

[REDACTED]

[REDACTED]

[REDACTED]

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Legal Counsel

[REDACTED]

[REDACTED]

Sole Source Justification and Approval
Under FAR 13.501

1. Contracting Activity: MICC Fort Novosel, AL 36362
2. Description of Action: This acquisition will be for a new Firm Fixed Price, commercially available, non-personnel services contract, using United States Army Training and Doctrine Command, Army Operations & Maintenance funds.
3. Description of Supplies/Services: The 110th Aviation Brigade is requesting the installation of safety markers on power lines that cross over a section of Claybank Creek in Dale County due to aircraft flying the Lowe South Terrain (Low Level) Corridor. The total estimated dollar value of the proposed action is [REDACTED]
4. Authority Cited: Federal Acquisition Regulation 6.302-1(b)(3) When acquiring utility services, circumstances may dictate that only one supplier can furnish the service; or when the contemplated contract is for construction of a part of a utility system and the utility company itself is the only source available to work on the system.
5. Reason for Authority Cited: The acquisition is required to use a specific contractor because Alabama Power Co. is the proprietary company for the powerlines and power poles that will have reflective balls installed. Because the powerlines and power poles are owned by Alabama Power Co. the poles and lines are only allowed to have work done on them by Alabama Power Co. or their subcontractors; therefore, the service of the construction and installation of the balls must be completed by Alabama Power Co. If this J&A is not approved, all aircraft flying near or at the Lowe South Terrain (Low Level) Corridor are at risk of unsafe flight, as well as loss of life, limb, or eyesight. This could ultimately lead to base field and stage field facilities shutting down and the eventual delay or cancellation of the Fort Novosel Flight Training Mission.
6. Efforts to Obtain Competition: A Special Notice was posted on SAM.gov on 1-April-2025. The Contract Specialist also reached out to Alabama Power Co. on 6 March 2025. It was confirmed by Alabama Power Co. that Alabama Power Co. owns and maintains the electric poles and lines. They also confirmed that only Alabama Power Co. and their subcontractors may do work on the electric poles and lines.
7. Actions to Increase Competition: We are always searching the market for better prices and any updated changes to propriety services. We will continue to research the market for vendors capable to compete for this type of work for future acquisitions.
8. Market Research: The requestor, as well as the contracting office, conducted Market Research; however, there were no other businesses capable of satisfying this requirement due to this acquisition being considered proprietary work of Alabama Power Co.

9. Interested Sources: Alabama Power Co.

10. Other Facts:

a. Procurement history: This is a new requirement; therefore, there is not any procurement history.

b. Other facts. It is confirmed that Alabama Power Co. owns and maintains the electric poles and lines; therefore, only Alabama Power Co. and their subcontractors may do work on the electric poles and lines.

11. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

13. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable.

[REDACTED]

[REDACTED]

[REDACTED]

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

[REDACTED]

CUI//SP-SSEL

Control Number:

CUI//SP-SSEL

(Source Selection Information - See FAR 2.101 and 3.104-4)

Approval

Based on the foregoing justification, I hereby approve the procurement of approximately 21 safety marker balls and the services for the installation of the safety markers on power lines that cross over a section of Claybank Creek in Dale County requested by the 110th Aviation Brigade. The total estimated dollar value of the proposed action is [REDACTED] It will be procured on an other than full and open competition basis pursuant to the authority of 41 U.S.C. 1901 as implemented by FAR 13.501, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

[REDACTED]

[REDACTED] [REDACTED]